



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2024-29830 (PODS Case No. C-031311) against Detective Daniel Gukelberger, Tax No. 948350

Date: February 19, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Detective Gukelberger stopped and searched a vehicle without sufficient legal authority; he frisked, searched, and detained the individual without sufficient legal authority; he searched the individual's bag without sufficient legal authority; he was discourteous and used physical force against the individual; he threatened to damage property without sufficient legal authority; and he searched a location without sufficient legal authority and beyond the parameters of consent. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, a penalty consisting of the issuance of a Schedule "B" Command Discipline with the forfeiture of eight (8) vacation days, as negotiated by CCRB, will be imposed in this matter.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



Dr. MOHAMMAD KHALID
INTERIM CHAIR

September 19, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038
VIA EMAIL

Re: *CCRB v. DT. Daniel Gukelberger (CCRB Case no. 202205856, DADs No. 2024-29830, Tax No. 948350)*

Commissioner Tisch:

A negotiated settlement of a Command Discipline B and forfeiture of eight (8) vacation days was agreed upon and signed by all the parties on August 21, 2025. Assistant Deputy Commissioner-Trials, Vanessa Facio-Lince endorsed the negotiated settlement on September 9, 2025. This is a downward deviation from the NYPD's Disciplinary Matrix. CCRB offered this disposition for the following reasons:

1. DT Gukelberger agreed to take responsibility for his misconduct.
2. While serving at INTEL CIS FIO PROGRAM, DT Gukelberger received recognition for Excellent Police Duty eleven times and Meritorious Police Duty twenty-three times.
3. DT Gukelberger has also been a member of service for sixteen years.
4. DT Gukelberger's Commanding Officers rates DT Gukleberger's overall performance well above average.

Respectfully submitted,

Andre D. Applewhite

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Chief Prosecutor
NYC Civilian Complaint Review Board

Cc: James Moschella, Esq.